

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X

MICHAEL GEORGE,

SUMMONS

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, ANDREW C. BOCCHIERI, JOHN
DOES 1-3

Defendants,

-----X

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after service of this Summons or within 30 days after the service is complete if this Summons is not personally delivered to you within the state of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is the place of incident.

Dated: New York, New York
February 4, 2021



ROBERT L. ROSE
FREKHTMAN & ASSOCIATES
Attorneys for Plaintiff
60 Bay 26th Street
Brooklyn, New York 11214
(718)-331-7700

DEFENDANT'S ADDRESS

THE CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
c/o CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

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MICHAEL GEORGE

VERIFIED COMPLIANT

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, ANDREW C. BOCCHIERI, JOHN
DOES 1-3

Defendants,

-----X

Plaintiff, **MICHAEL GEORGE** by and through his attorney, **FREKHTMAN & ASSOCIATES** complaining of the Defendants herein, upon information and belief, respectfully show to this Court, and allege as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, the Plaintiff was a resident of the County of Bronx, City and State of New York.
2. That at all times hereinafter mentioned Defendant, THE CITY OF NEW YORK was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, NEW YORK CITY POLICE DEPARTMENT was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
4. That at all times hereinafter mentioned Defendant, Lieutenant ANDREW C. BOCCHIERI, was and still is employed with the New York City POLICE DEPARTMENT.
5. That at all times hereinafter mentioned Defendants, JOHN DOES 1-3, are intended to be Police Officers that were involved in the detainment and use of excessive force against Plaintiff during the subject incident on June 4, 2020.

6. That at all times hereinafter mentioned Defendants, JOHN DOES 1-3, were and still are employed with the New York City POLICE DEPARTMENT.

7. That prior to the institution of this action, a Notice of Claim was duly served upon and filed with the CITY OF NEW YORK on behalf of Plaintiff.

8. That the CITY OF NEW YORK held an examination pursuant to Municipal Law 50-H on October 30, 2020.

9. That at all time herein mentioned, Lieutenant ANDREW C. BOCCHIERI and JOHN DOES 1-3, were acting within the scope and course of their employment with the New York Police Department, and under color of State Law.

10. That at all times herein mentioned, Lieutenant ANDREW C. BOCCHIERI and JOHN DOES 1-3 were acting in their individual and official capacity as employees of Defendants THE CITY OF NEW YORK (CITY) and NEW YORK CITY POLICE DEPARTMENT (NYPD).

11. That at all times herein mentioned, Lieutenant ANDREW C. BOCCHIERI's Tax ID number was and is 938079.

12. That all the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

STATEMENT OF FACTS AS TO ALL CAUSES OF ACTION

13. On or about June 4, 2020, at approximately 7:50 p.m., Plaintiff MICHAEL GEORGE was lawfully at or near the intersection of 136th Street and Brook Avenue, Bronx NY 10454.

14. Claimant was lawfully standing at the aforementioned location whereby the defendants approached him.

15. At said time and place plaintiff was assaulted, battered, and arrested by the defendants causing severe personal injuries.

16. Plaintiff was detained and held against his will for multiple hours before being released from police custody.

17. All criminal charges against Plaintiff were favorably dismissed.

18. Plaintiff MICHAEL GEORGE's personal property including jewelry and a cell phone which Plaintiff was using to record the subject incident was wrongfully taken by the defendants and never returned to Plaintiff. Claim is made for loss of the aforementioned property.

19. The individual Defendants Lieutenant ANDREW C. BOCCHIERI and JOHN DOES 1-3, under color of state law, subjected Plaintiff to the foregoing acts and omissions without due process of the law, thereby depriving Plaintiff of his rights, privileges and immunities secured by the First, Fourth and Fourteenth Amendments to the United States Constitution, including without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable searches and seizure of his person, including the excessive use of force; (b) freedom from arrest without probable cause; (c) freedom from false imprisonment, meaning wrongful detention without good faith, reasonable suspicion or legal justification of which Plaintiff was aware and did not consent; (d) freedom from the lodging of false charges against them by police; (e) freedom from abuse of process; and (f) the enjoyment of equal protection, privileges and immunities under the laws.

FIRST CAUSE OF ACTION AGAINST DEFENDANT CITY
MONELL CLAIM PURSUANT TO 42 U.S.C § 1983 AND RESPONDEAT SUPERIOR

20. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.

21. All of the acts and omissions by the individual Defendants, Lieutenant ANDREW C. BOCCHIERI and JOHN DOES 1-3, described above were carried out pursuant to overlapping policies and practices of the CITY which were in existence at the time of the conduct alleged

herein and were engaged in with the full knowledge, consent and cooperation and under the supervisory authority of Defendants CITY and the NEW YORK CITY POLICE DEPARTMENT (NYPD).

22. Defendants CITY and NYPD, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those acts to continue.

23. Defendants Lieutenant ANDREW C. BOCCHIERI and JOHN DOES 1-3 arrested, incarcerated and assaulted Plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.

24. At all times mentioned herein, said police officer was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

25. On or about June 4, 2020, Defendants did stop, seize, search, assault and commit a battery and grab the persons of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner.

26. The Plaintiff was falsely arrested, unlawfully imprisoned and maliciously prosecuted without the Defendants' possessing probable cause to do so.

27. The above actions of Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution.

- a. Freedom from assault to his person.
- b. Freedom from battery to his person.
- c. Freedom from the use of excessive force during the arrest process.

28. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights.

29. Defendant CITY has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based upon probable cause.

30. The direct and proximate results of the Defendants' acts are that Plaintiff suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering to his detriment.

SECOND CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S RIGHTS UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION AND NEW YORK STATE LAW PREDICATED UPON ASSAULT,
BATTERY, AND THE USE OF EXCESSIVE FORCE UPON PLAINTIFF

31. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.

32. That on or about June 4, 2020, at approximately 7:50 p.m., Lieutenant ANDREW C. BOCCHIERI and JOHN DOES 1-3, jointly and severally in his capacity as a police officer, wrongfully entered, stopped, handcuffed and seized the Plaintiff about his person, causing him physical pain and mental suffering. At no time did Defendants have legal cause to enter, stop, handcuff, seize or touch Plaintiff, nor did Plaintiff consent to this illegal touching nor was or privileged by law.

33. As a result of the aforementioned actions, Lieutenant ANDREW C. BOCCHIERI and JOHN DOES 1-3 deprived Plaintiff of the right to be free from the use of excessive force

secured by the Constitution and Laws of the United States of America and the Fourth and Fourteenth Amendments.

34. As a result of the aforementioned actions, Defendants deprived Plaintiff of his right against the use of excessive force against their persons secured by the Constitution and Laws of the United States of America and the Fourth, Fifth, and Fourteenth Amendments.

35. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiff's rights.

36. That by reason of the false arrest, imprisonment and detention of Plaintiff, Plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and were caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

37. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985, 1986 and under New York state law.

WHEREFORE, Plaintiff demands judgment against Defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for their pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and Plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, and together with costs and disbursements.

Dated: New York, New York
February 4, 2021



ROBERT L. ROSE
FREKHTMAN & ASSOCIATES
Attorneys for Plaintiff
60 Bay 26th Street
Brooklyn, New York 11214
(718)-331-7700

Attorney's Verification

Robert L. Rose, an attorney duly admitted to practice law in the State of New York and associated with Frekhtman & Associates, attorneys for Plaintiff herein, and that I have read the foregoing Summons and Complaint and that the contents thereof; are true to deponent's own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, deponent believes them to be true.

The source of deponent's knowledge is based upon a review of the litigation file maintained in the office. This verification is made by the deponent rather than by the plaintiff due to the COVID-19 pandemic. A verification made by the plaintiff will be filed upon its availability.

Dated: Brooklyn, New York
February 4, 2021



Robert L. Rose, Esq.